

Multiple Choice (10 marks)

1. A man is charged with murder. During the trial, defense counsel offers the testimony of a man on death row admitting he hired another man to shoot the victim. The testimony is
 - (a) not hearsay.
 - (b) hearsay, but admissible as an admission.
 - (c) hearsay, but admissible as a dying declaration.
 - (d) hearsay not within any recognized exception.
2. What kind of damages put the nonbreaching party into as good a position as if the other party had fully performed?
 - (a) Nominal
 - (b) Punitive
 - (c) Rescission
 - (d) Compensatory
3. If a regulation does amount to a taking, then what must the government do?
 - (a) Pay just compensation for the property
 - (b) Terminate the regulation and pay damages that occurred while regulation was in effect
 - (c) Pay double damages if not addressed in 30 days.
 - (d) a or b
4. Which of the following types of regulations would not be reviewed under the strict scrutiny standard of review?
 - (a) Gender
 - (b) Interstate travel
 - (c) Privacy
 - (d) Alienage
5. A defendant charged with first-degree murder shall be furnished with a list containing names and addresses of all prospective jurors
 - (a) upon court order.
 - (b) upon request.
 - (c) upon request and showing of good cause.
 - (d) under no circumstances.

True / False (10 marks)

Answer True or False

6. True or False: An indigent person has the Sixth Amendment right to counsel during all stages of the criminal process, including investigative surveillance.
7. True or False: Contracts for the purchase of a commercial property building are typically governed by the Uniform Commercial Code (UCC).
8. True or False: The Rule in Shelley's Case invalidates a reversion in the grantor when a remainder is created for the grantor's heirs.
9. True or False: The element of common law burglary does not require that the entry occurs during the daytime.
10. True or False: The necessary and proper power, standing alone, cannot support the enactment of federal law without another enumerated power.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the concept of warrantless searches in constitutional law, specifically analyzing the exceptions to the warrant requirement and explaining why cold pursuit does not qualify as an exception.
12. Discuss the legal status of the jogger who entered the convenience store to use the bathroom. Analyze how this status as a public invitee affects his rights and the store's obligations.

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